

UPSC INDIAN POLITY

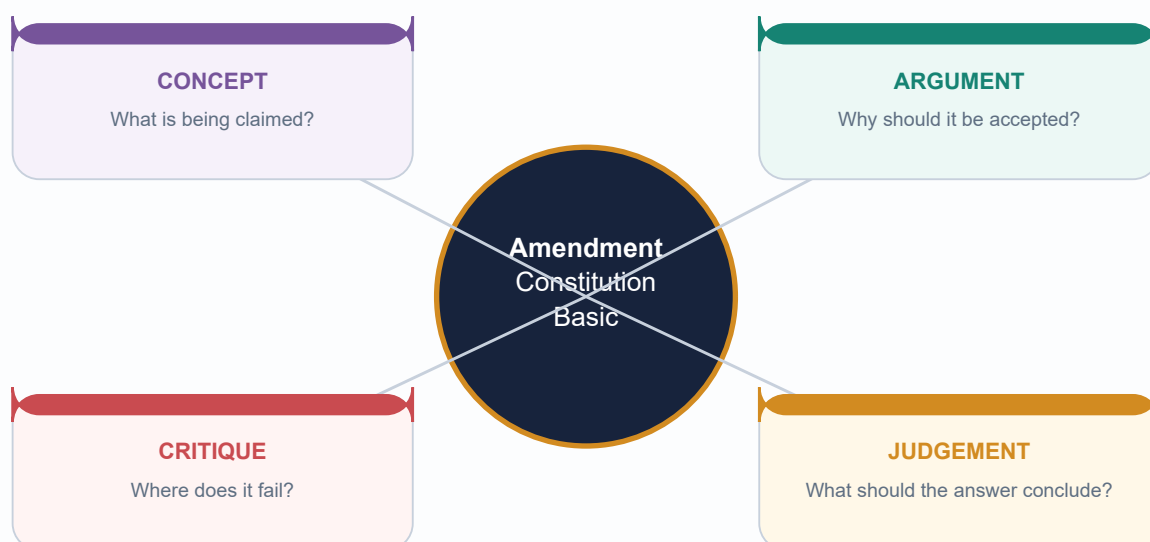
Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Amendment-and-Basic-Structure.md + 10_Amendment-and-Basic-Structure.md

Learning cards: 24



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Basic (foundation) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant (Part XX, Article 368)
Dimension 3 greater than □ = from source book · □□ = inference / standard knowledge · □ = current affairs	

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant (Part XX, Article 368)
- greater than □ = from source book · □□ = inference / standard knowledge · □ = current affairs

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / standard knowledge · □ = current affairs

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Detail
Article	□ 368 (Part XX)
Nature	□ Neither too flexible (Britain) nor too rigid (USA) — a synthesis
Power type	□ Constituent power of Parliament
Limit	□ Cannot alter the basic structure (*Kesavananda*, 1973)

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Snapshot

HIGH**Foundation · Core idea**

GS-II Indian Polity

INTRO & ORIGIN

□ Only **Parliament** can initiate an amendment (not states). Bill passed by **special majority**; federal provisions also need **half the states** to ratify. President **must** give assent (24th Amdt made this compulsory). Parliament can amend **any** part — including FR — **but not** the basic structure.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Only **Parliament** can initiate an amendment (not states). Bill passed by **special majority**; federal provisions also need **half the states** to ratify. President **must** give assent (24th Amdt made this compulsory). Parliament can amend **any** part — including FR — **but not** the basic structure.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Core idea

HIGH**Foundation · Three ways to amend**

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Way	Majority	Examples
□ Simple majority (outside Art 368)	Members present & voting	New states, citizenship, legislative councils, 5th/6th Schedule
□ Special majority	Total-membership + 2/3 present & voting	FR, DPSP, most provisions
□ Special majority + half states	Above + ratification by ½ states	President's election, SC/HC, Centre-state powers, GST Council , 7th Schedule

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Three ways to amend

HIGH

Foundation · Three ways to amend

GS-II Indian
Polity

INTRO & ORIGIN

greater than □ Trap: state ratification is by **simple** majority, and only **half** the states (USA = 3/4).

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- greater than **No joint sitting** for amendment deadlocks.

MEMORY HOOK

greater than Trap: state ratification is by simple majority, and only half the states (USA = 3/4).

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Three ways to amend

HIGH

Foundation · Basic Structure — the case sequence □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Case	Year	What it said
□ Shankari Prasad	1951	Parliament can amend FR
□ Golak Nath	1967	Parliament cannot amend FR
□ 24th Amendment	1971	Parliament can amend FR (reversed Golak Nath)
□ Kesavananda Bharati	1973	Can amend FR but not basic structure (13-judge bench)
□ Minerva Mills	1980	Judicial review & limited amending power = basic features

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Basic Structure — the case sequence □

HIGH

Foundation • Some basic-structure elements

GS-II Indian
Polity

INTRO & ORIGIN

□ Supremacy of Constitution · secularism · federalism · separation of powers · **judicial review** · rule of law · free & fair elections · independence of judiciary · FR-DPSP balance.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Supremacy of Constitution · secularism · federalism · separation of powers · **judicial review** · rule of law · free & fair elections · independence of judiciary · FR-DPSP balance.

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Some basic-structure elements

HIGH

Foundation • Must-Know Facts (Prelims)

GS-II Indian
Polity

INTRO & ORIGIN

□ Amendment power = **Art 368**, Part XX; only **Parliament** initiates.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS (PRELIMS): RECALL MAP

Must-Know Facts (Prelims)

Dimension 1

□ Amendment power = Art 368, Part XX; only Parliament initiates.

Dimension 2

□ Special majority = total membership + 2/3 present & voting.

Dimension 3

□ **Kesavananda Bharati (1973)** = basic-structure doctrine (13 judges).

Dimension 4

□ President must assent to amendment bills (24th Amdt, 1971).

STATIC THEORY

- □ **Special majority** = total membership + 2/3 present & voting.
- □ **Kesavananda Bharati (1973)** = basic-structure doctrine (13 judges).
- □ President **must** assent to amendment bills (24th Amdt, 1971).
- □ **No joint sitting** for constitutional amendment bills.

MUST-KNOW FACTS

1. Amendment power = **Art 368**, Part XX; only **Parliament** initiates.
2. **Special majority** = total membership + 2/3 present & voting.
3. **Kesavananda Bharati (1973)** = basic-structure doctrine (13 judges).
4. President **must** assent to amendment bills (24th Amdt, 1971).
5. **No joint sitting** for constitutional amendment bills.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → Must-Know Facts (Prelims)

HIGH**Foundation** · ☐ **Current link****GS-II** Indian
Polity**NEWS TRIGGER**

☐ 2023 = **50 years of Kesavananda**. VP Dhankhar questioned the doctrine as diluting parliamentary sovereignty; judiciary reaffirmed that Indian Parliament is **not supreme** — bound by judicial review. ☐ For the full case-law spine (Shankari Prasad → Coelho), the complete simple/special/federal lists, criticism, all 20 basic-structure elements, traps & Mains angles — see **advanced/Amendment-and-Basic-Structure.md**.

INTRO & ORIGIN

Exam-ready treatment of ☐ **Current link**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → ☐ **Current link**

HIGH**Advanced** · **Core Foundation****GS-II** Indian
Polity**INTRO & ORIGIN**

greater than **Subject**: Polity · **Tier**: Advanced (exam depth) · **GS Paper**: GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Part XX (Art 368) (direct check of the local Sixth Revised Edition PDF) + official court upda
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = official/court-verified update.	Dimension 4 greater than Companion: basic/Amendment-and-Basic-Structure.md.

STATIC THEORY

- greater than **Grounded in**: Indian Polity by M. Laxmikant, Part XX (Art 368) (direct check of the local Sixth Revised Edition PDF) + official court update.
- greater than □ = from source book · □□ = inference / case law · □ = official/court-verified update.
- greater than *Companion*: *basic/Amendment-and-Basic-Structure.md*.

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = official/court-verified update.

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic
Structure (Article 368) — ADVANCED /
COMPLETE → Core Foundation

HIGH

Advanced · Nature

GS-II Indian
Polity

INTRO & ORIGIN

□ **Art 368, Part XX** — Parliament's power & procedure to amend by **addition, variation or repeal**. □ Indian amendment process is **neither as easy as Britain nor as rigid as USA** — a **synthesis** (K.C. Wheare: "strikes a good balance between flexibility and rigidity"). □ Parliament exercises **constituent power**, but **cannot amend the "basic structure"** (*Kesavananda Bharati*, 1973).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Art 368, Part XX** — Parliament's power & procedure to amend by **addition, variation or repeal**. Indian amendment process is **neither as easy as Britain nor as rigid as USA** — a **synthesis** (K.C. Wheare: "strikes a good balance between flexibility and rigidity"). Parliament exercises **constituent power**, but **cannot amend the "basic structure"** (*Kesavananda Bharati*, 1973).

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic
Structure (Article 368) — ADVANCED /
COMPLETE → Nature

HIGH

Advanced · Procedure for amendment (Art 368) — 8 steps

GS-II Indian Polity

INTRO & ORIGIN

□ (1) Initiated **only in Parliament** (not state legislatures) by a **bill**. (2) By minister OR private member; **no prior Presidential permission**. (3) Passed in each House by **special majority** = majority of **total membership + two-thirds of members present & voting**. (4) **Each House separately** — **no joint sitting** provision for deadlock. (5) If federal provisions → **ratified by half the states** by **simple majority** (no time limit; can't be forced). (6) Presented to President. (7) President **must assent** — cannot withhold or return (**24th Amdt, 1971** made assent obligatory). (8) Becomes a Constitutional Amendment Act.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PROCEDURE FOR AMENDMENT (ART 368) — 8 STEPS: RECALL MAP

Procedure for amendment (Art 368) — 8 steps

Dimension 1 □ (1) Initiated only in Parliament (not state legislatures) by a bill. (2) By minister OR private member; no prior Presidential permission. (3) Passed	Dimension 2 greater than □ Traps: joint sitting not available; states ratify by simple majority; President has no
Dimension 3 greater than veto on amendment bills (unlike ordinary bills).	

STATIC THEORY

- greater than □ Traps: joint sitting **not** available; states ratify by **simple** majority; President has ****no**
- greater than veto^{**} on amendment bills (unlike ordinary bills).

MEMORY HOOK

greater than Traps: joint sitting not available; states ratify by simple majority; President has **no****

MUST-KNOW FACTS

1. (1) Initiated **only in Parliament** (not state legislatures) by a **bill**. (2) By minister OR private member; **no prior Presidential permission**. (3) Passed in each House by **special majority** = majority of **total membership + two-thirds of members present & voting**. (4) **Each House separately** — **no joint sitting** provision for deadlock. (5) If federal provisions → **ratified by half the states** by **simple majority** (no time limit; can't be forced). (6) Presented to President. (7) President **must assent** — cannot withhold or return (**24th Amdt, 1971** made assent obligatory). (8) Becomes a Constitutional Amendment Act.

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → Procedure for amendment (Art 368) — 8 steps

HIGH

Advanced · Three types of amendments

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Majority needed	Note
(a) Simple majority	Majority of members present & voting	□ Outside Art 368 — not deemed amendments under Art 368
(b) Special majority	Total-membership majority + 2/3 present & voting	Most of the Constitution incl. FR & DPSP
(c) Special majority + state ratification	(b) + half of state legislatures (simple majority)	Federal provisions

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → Three types of amendments

HIGH

Advanced · (a) By SIMPLE majority (outside Art 368)
— high-yield listGS-II Indian
Polity

INTRO & ORIGIN

□ New states admission/formation, alteration of areas/boundaries/names; abolition/creation of **legislative councils**; **2nd Schedule** (emoluments); quorum; MP salaries; parliamentary procedure/privileges; use of English in Parliament; number of SC puisne judges; more SC jurisdiction; official language; **citizenship** (acquisition/termination); elections to Parliament/state legs; delimitation; **UTs**; **5th Schedule** (scheduled areas); **6th Schedule** (tribal areas).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. New states admission/formation, alteration of areas/boundaries/names; abolition/creation of **legislative councils**; **2nd Schedule** (emoluments); quorum; MP salaries; parliamentary procedure/privileges; use of English in Parliament; number of SC puisne judges; more SC jurisdiction; official language; **citizenship** (acquisition/termination); elections to Parliament/state legs; delimitation; **UTs**; **5th Schedule** (scheduled areas); **6th Schedule** (tribal areas).

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → (a) By SIMPLE majority (outside Art 368) — high-yield list

HIGH

Advanced · (b) By SPECIAL majorityGS-II Indian
Polity**INTRO & ORIGIN**

□ FR, DPSP, and all provisions not in (a) or (c). "Total membership" = full strength regardless of vacancies/absentees.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. FR, DPSP, and all provisions not in (a) or (c). "Total membership" = full strength regardless of vacancies/absentees.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → (b) By SPECIAL majority

HIGH

Advanced · (c) SPECIAL majority + STATE ratification — the federal listGS-II Indian
Polity**INTRO & ORIGIN**

□ (1) Election of President & its manner; (2) extent of Union & state executive power; (3) **SC & HCs**; (4) distribution of legislative powers (Centre-state); (5) **GST Council** (added by **101st Amdt, 2016**, Art 279-A); (6) any of the **7th Schedule** lists; (7) representation of states in Parliament; (8) **Art 368 itself**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. (1) Election of President & its manner; (2) extent of Union & state executive power; (3) **SC & HCs**; (4) distribution of legislative powers (Centre-state); (5) **GST Council** (added by **101st Amdt, 2016**, Art 279-A); (6) any of the **7th Schedule** lists; (7) representation of states in Parliament; (8) **Art 368 itself**.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → (c) SPECIAL majority + STATE ratification — the federal list

HIGH

Advanced · Criticism of the amendment procedure (7)GS-II Indian
Polity**INTRO & ORIGIN**

□ (1) No special body (Constitutional Convention as in USA). (2) States **can't initiate** amendments (except resolution for creating/abolishing legislative councils). (3) Most amendments by Parliament alone; state consent only from **half** (vs **three-fourths** in USA). (4) No time-frame for state ratification; silent on withdrawal of consent. (5) No **joint sitting** for deadlock. (6) Process resembles ordinary legislation (except special majority). (7) Provisions too **sketchy** → wide scope for judiciary. □ Yet praised: Nehru (flexibility for a "living, vital, organic people"), Ambedkar ("facile procedure"), K.C. Wheare ("variety... wise but rarely found"), Granville Austin ("ably conceived... merely diverse").

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. (1) No special body (Constitutional Convention as in USA). (2) States **can't initiate** amendments (except resolution for creating/abolishing legislative councils). (3) Most amendments by Parliament alone; state consent only from **half** (vs **three-fourths** in USA). (4) No time-frame for state ratification; silent on withdrawal of consent. (5) No **joint sitting** for deadlock. (6) Process resembles ordinary legislation (except special majority). (7) Provisions too **sketchy** → wide scope for judiciary. Yet praised: Nehru (flexibility for a "living, vital, organic people"), Ambedkar ("facile procedure"), K.C. Wheare ("variety... wise but rarely found"), Granville Austin ("ably conceived... merely diverse").

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Criticism of the amendment procedure (7)

HIGH**Advanced · BASIC STRUCTURE — emergence (the case-law spine)** □ □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Case / Amendment	Year	Ruling
□ Shankari Prasad	1951	Art 368 power includes amending FR; "law" in Art 13 = ordinary laws only, not constitutional amendments. (Challenge: 1st Amdt / property.)
□ Golak Nath	1967	Reversed — FR are " transcendental and immutable "; amendment is "law" under Art 13 → Parliament cannot abridge FR. (Challenge: 17th Amdt / 9th Schedule.)
□ 24th Amdt	1971	Parliament can abridge/take away FR under Art 368; such act not "law" under Art 13. Amended Art 13 & 368.
□ Kesavananda Bharati	1973	Overruled Golak Nath ; upheld 24th Amdt (Parliament can amend FR) BUT propounded the " basic structure " doctrine — Art 368 constituent power cannot alter basic structure . 13-judge bench (largest ever).
□ Indira Nehru Gandhi	1975	Reaffirmed doctrine; struck down part of 39th Amdt (removing PM/Speaker election disputes from courts) as violating basic structure.
□ 42nd Amdt	1976	Declared no limitation on constituent power; no amendment questionable in any court.
□ Minerva Mills	1980	Struck that down — judicial review & limited amending power are basic features. "A limited amending power... cannot be converted into an unlimited one."
□ Waman Rao	1981	Basic-structure doctrine applies to amendments after 24 April 1973 (Kesavananda date).

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → BASIC STRUCTURE — emergence (the case-law spine) □□

HIGH

Advanced · Elements of the Basic Structure (illustrative, court hasn't defined exhaustively)

GS-II Indian
Polity

INTRO & ORIGIN

□ Supremacy of Constitution · sovereign-democratic-republican nature · **secular** character · separation of powers · **federal** character · unity & integrity · welfare state (socio-economic justice) · **judicial review** · freedom & dignity of individual · parliamentary system · **rule of law** · harmony/balance between FR & DPSP · principle of equality · **free & fair elections** · **independence of judiciary** · limited amending power · effective access to justice · essence of FRs · powers of **SC (Art 32,136,141,142)** · powers of **HCs (Art 226,227)**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

ELEMENTS OF THE BASIC STRUCTURE (ILLUSTRATIVE, COURT HASN'T DEFINED EXHAUSTIVELY): RECALL MAP

Elements of the Basic Structure (illustrative, court hasn't defined exhaustively)

Dimension 1 □ Supremacy of Constitution · sovereign-democratic-republican nature · secular character · separation of powers · federal character · unity & integrity	Dimension 2 greater than □□ Later additions courts have cited: judicial review, free & fair elections (Indira Gandhi 1975),
Dimension 3 greater than rule of law (Indira Gandhi), federalism (S.R. Bommai 1994). The list is open-ended by design.	

STATIC THEORY

- greater than □□ Later additions courts have cited: judicial review, free & fair elections (Indira Gandhi 1975),
- greater than rule of law (Indira Gandhi), federalism (S.R. Bommai 1994). The list is **open-ended** by design.

MUST-KNOW FACTS

1. Supremacy of Constitution · sovereign-democratic-republican nature · **secular** character · separation of powers · **federal** character · unity & integrity · welfare state (socio-economic justice) · **judicial review** · freedom & dignity of individual · parliamentary system · **rule of law** · harmony/balance between FR & DPSP · principle of equality · **free & fair elections** · **independence of judiciary** · limited amending power · effective access to justice · essence of FRs · powers of **SC (Art 32,136,141,142)** · powers of **HCs (Art 226,227)**.

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Elements of the Basic Structure (illustrative, court hasn't defined exhaustively)

HIGH

Advanced • □ CURRENT AFFAIRS — Basic Structure at 50 (2023–24)

GS-II Indian Polity

NEWS TRIGGER

□ **2023 = 50th anniversary** of *Kesavananda Bharati* (24 April 1973). □ **VP Jagdeep Dhankhar** publicly questioned the doctrine — argued it **dilutes parliamentary sovereignty** and that Parliament (as the elected sovereign) shouldn't be subject to a judicial "veto." □ Judiciary/legal community reaffirmed: unlike Britain, **Indian Parliament is not supreme** — its power is bounded by the Constitution and **judicial review** (itself part of the basic structure). This "Legislature vs Judiciary" tension is prime **Mains/essay** material.

INTRO & ORIGIN

Exam-ready treatment of □ CURRENT AFFAIRS — Basic Structure at 50 (2023–24).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — **ADVANCED / COMPLETE** → □ CURRENT AFFAIRS — Basic Structure at 50 (2023–24)

HIGH

Advanced • UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Amendment can be initiated in state legislatures

CORRECT: only Parliament (Art 368).

WRONG: Deadlock resolved by joint sitting

CORRECT: no joint-sitting provision for amendment bills.

WRONG: States ratify by special majority

CORRECT: simple majority; only half (not 3/4 as in USA).

WRONG: President can withhold/return an amendment bill

CORRECT: must assent (24th Amdt).

WRONG: Simple-majority changes (new states, citizenship, 5th/6th Schedule) count as Art 368 amendments

CORRECT: they're outside Art 368.

WRONG: Kesavananda gave Parliament unlimited power

CORRECT: it limited it via basic structure.

WRONG: Basic structure was first laid down in Golak Nath

CORRECT: Kesavananda (1973); Golak Nath only made FR unamendable.

MAINS ANGLE**STUDY LINK**

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → UPSC Traps

HIGH**Advanced • PYQ / CA anchors**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of PYQ / CA anchors.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Recurrent Prelims: which provisions need state ratification; simple-vs-special majority items; case sequence Shankari Prasad → Golak Nath → Kesavananda → Minerva Mills. □ Recheck the Supreme Court's official judgments portal for any later basic-structure ruling.

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → PYQ / CA anchors

HIGH

Advanced · Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Basic-structure doctrine: guardian of constitutionalism or judicial overreach? (use Dhankhar 2023–24 debate). Evolution of the FR-amendability question — Shankari Prasad to Kesavananda to I.R. Coelho. Balancing parliamentary sovereignty with constitutional supremacy in India.

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Verified PYQ application

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2025 GS-II Q12 (15 marks, 250 words):** “Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution.” Route: three amendment routes and state ratification -greater than no joint sitting/mandatory assent -greater than basic-structure substantive ceiling -greater than limited constituent power under constitutional supremacy.

STUDY LINK

Amendment of the Constitution & Basic Structure (Article 368) — ADVANCED / COMPLETE → Verified PYQ application

End of Register Notes — UPSC Agent / Copilot CLI